REPUBLIC OF THE PHILIPPINES
CITY OF DAVAO
OFFICE OF THE SANGGUNIANG PANLUNGSOD

Ordinance No. 0367-12

THE NEW COMPREHENSIVE ANTI-SMOKING ORDINANCE OF DAVAO CITY

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled that:

SECTION 1. TITLE. — This Ordinance shall be known as "THE NEW COMPREHENSIVE ANTI-SMOKING ORDINANCE OF DAVAO CITY";

SECTION 2. COVERAGE. — It shall be unlawful for any person to smoke or allow smoking of any tobacco product, or use Electronic Device Systems, Shisha and the like, in all forms of Public Conveyances, Government-owned Vehicles, Accommodation and Entertainment Establishments, Workplaces, Enclosed or Partially Enclosed Public Places, Public Buildings, and Public Outdoor Spaces, except in duly designated smoking areas as defined in Section 3 hereunder, within the Territorial Jurisdiction of Davao City;

SECTION 3. DEFINITION OF TERMS. —

a) Accommodation and Entertainment Establishments refer to establishments that provide food, accommodation, drinks, merchandise, entertainment or other professional services including, but not limited to, restaurants, fast foods, eateries, hotels, motels, lodges, boarding houses, theaters, concert halls, auditoriums, and movie houses, or any other place with pleasant environment and atmosphere conducive to comfort, healthful relaxation and rest, offering food and/or drinks, sleeping accommodation and recreation facilities to the public for a fee;

b) Designated Smoking Area refers to an outdoor space where a person is allowed to smoke without violating this Ordinance that meets the following requirements, at the minimum:

i. It shall be located in an open space with no permanent or temporary roof or walls in an outdoor area;

ii. It shall not be located within ten (10) meters of entrances, exits or passageways used by people congregate;

iii. It shall not have an area larger than five (5) square meters;

iv. It shall not have more than one (1) designated smoking area;

v. No food or drinks shall be served in the designated smoking area;

vi. Every smoking area above have highly visible and prominently displayed "No Smoking" signs with clear indication of the ill effects of smoking to the smoker's health or exposure to secondhand smoke. Under no circumstances shall any mark, device, word or image associated with any tobacco company or product be included in any of these signs and materials.

All designated smoking areas shall be covered by a certificate of compliance from the Office of the City Mayor through the Anti-Smoking Task Force;

c) Electronic Device Systems refer to any device such as electronic nicotine device system, electronic cigarette and other similar devices, which are designed to deliver nicotine to the user, that resembles the outward appearance of real smoking products;

d) Enclosed or Partially Enclosed Public Places refers to all places which are enclosed by one or more walls or sides whether covered by a roof or not, or even if open on all sides but is covered by a roof, regardless of whether the structure is permanent or temporary in nature, that are accessible or open to the public, whether or not by invitation or by payment, or all places for collective use, regardless of ownership or right to access, such as shopping malls, department stores, airports, terminals, shopping business arcades, town squares, terminals, airport, seaports, schools, places of worship/churches, hospitals, cinema houses, gymnasiums/covered courts, funeral parlors, barber shops, cockpits, gaming

areas, recreational facilities, pedestrian overpass, indoor car parks, waiting sheds, sidewalks and other places where people usually congregate;

e) Public Conveyances - refer to any vehicle, whether mobile or stationary, used in the transport of passengers or available to the public as a mode of transport, such as, but not limited to, jeepsneys, buses, trains, vans, taxis, airplanes, ships, and other modes of water transportation, tricycles, motorcycles and other public utility vehicles whether covered by a Certificate of Public Convenience or not;

f) Public Building refers to any of the following:

1. A building structure owned by the government or owned by a private person but used, rented or occupied by the government or any of its instrumentalities;

2. Any building or structure used or controlled exclusively for public purposes by any department or branch of government, local government unit or barangay without reference to the ownership of the building;

g) Public Outdoor Spaces - refer to outdoor spaces that are open to the public or places where facilities are available for the public or where a crowd may gather or congregate or regardless of ownership or right to access such as, but not limited to, parks, playgrounds, sports grounds or centers, gaming areas, cockfighting areas, healthcare/hospital compounds, cemeteries, gardens, resorts, beaches, parks, marinas, streets, sidewalks, parking areas, walkways, entrance ways, waiting areas, sidewalks and the like;

h) Shisha - refers to a device or instrument which is used for smoking, whether it does not deliver nicotine to the user or whether it delivers nicotine through a water basin before inhalation. It is also known as waterpipe, Sheesha, Hookah, Narghile, Argel and Narghile;

i) Smoking - refers to the lighting and/or puffing of any cigarette, cigar, tobacco product of any kind, form or type, electronic device systems, Shisha and the like. Possession of any lighted cigarette, cigar or any tobacco product, or an actually operated electronic device system, Shisha and the like within the prohibited areas for smoking shall constitute prima facie evidence of smoking prohibited under this Ordinance;

j) Tobacco Product - any product that consists of loose tobacco that contains nicotine and is intended for use in a cigarette, including any product containing tobacco and intended for smoking or oral or nasal use;

k) Workplaces - an area, permanent or temporary, in which a person performs duties of employment or work, regardless of whether the work is done for compensation or on a voluntary basis, and includes private offices, common area and any other area which is generally used or frequently used by employees of the employer for employment or work. Company-owned vehicles used for transporting employees and guests and any vehicles used in the course of work are considered workplaces;

SECTION 4. PROHIBITED ACTS. — The following acts shall be prohibited:

a) Smoking any tobacco product or using Electronic Device Systems, Shisha and the like in any of the places enumerated in Section 2 hereof, except in duly approved designated smoking areas;

b) Knowingly allowing, abetting or tolerating smoking any tobacco product or using Electronic Device Systems, Shisha and the like in any of the places enumerated in Section 2 hereof, except when smoking is done within the duly approved designated smoking areas;

c) Refusal to allow entry of the members of the Anti-Smoking Task Force into its duly deputized enforcers into places mentioned in Section 2 of this Ordinance for the purpose of implementing, monitoring, inspecting and enforcing the provisions of this Ordinance as provided for in Section 7 hereof;

d) Failure to comply with the mandatory duties and obligations as enumerated in Section 5 as well as any other provisions of this Ordinance;

SECTION 5. MANDATORY DUTIES AND OBLIGATIONS. — The person-in-charge, which refers to the President or Manager in cases of a company, corporation or association, or partnership or the Owner/Proprietor or Operator in case of Single Proprietorship, of accommodation and entertainment establishments, whether tourism accredited or not, Workplaces, Enclosed or Partially Enclosed Public Places,

Public Buildings, Public Outdoor Spaces shall:

1. Post and display an eight by sixteen (8x16) inches This is a Non-Smoking Establishment sign at all entrances. Prominently display "No Smoking" signs in the most visible locations in the area where smoking is prohibited [main accommodation area, function rooms, lounges, bars, etc.], in order that the public can easily view such signs and understand them. The NO SMOKING signs for new establishments shall be at least eight by sixteen (8x16) inches in size and the International "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette) shall be placed in the center of the bar across it shall occupy no less than fifty percent (50%) of the total signage. The remaining lower fifteen percent (50%) of the signage shall show the following warning prominently:
2. Remove all ashtrays or any receptacles for dispensing cigarettes refuse from Accommodation and Entertainment Establishments, Workplaces, Enclosed or Partially Enclosed Public Places, Public Buildings and other Public Outdoor Spaces;
3. Ensure that all the employees in the establishment are aware of the provisions of this Ordinance and to provide a procedure for informing customers or clients of the provisions of this Ordinance;
4. Undertake all reasonable steps to ensure strict implementation of this Ordinance and to inform people to refrain from smoking any tobacco product or using Electronic Device Systems, Shisha and the like within their establishments except in duly approved designated smoking areas. The person-in-charge, his/her duly authorized representative including the employees concerned shall immediately inform the Anti-Smoking Task Force on its duly deputized enforcers, or any law enforcer or the nearest police station of the violation and the violator's thereof;
5. Selling of cigarettes or any tobacco product is strictly prohibited in a non-smoking area.

Owners, operators and drivers of Public Conveyances, government-owned and company-owned vehicles use to transport employees and guests are mandated to prominently display "NO SMOKING" signs as follows:

1. For jeeps, the "NO SMOKING" sign of at least 3.5 sq. inch shall be placed at the back of the windshield and another sign of at least 10 sq. inch shall be placed at the back of the front row seats;
2. For taxis, vans or other similar vehicles, the "NO SMOKING" sign of at least 3.5 sq. inch shall be placed on the glove compartment at the front right side of the front windshield and another sign of at least 10 sq. inch shall be placed at the back of the driver's seat;
3. For buses, the "NO SMOKING" sign of at least 3.5 sq. inch shall be placed at the back of the windshield and another sign of at least 14 sq. inch shall be placed at the back of the driver's seat facing the passengers or a similarly prominent area of the vehicle;
4. For other types of vehicles, the "NO SMOKING" sign of at least 3.5 sq. inch shall be placed at the back of the windshield and another sign of at least 10 sq. inch shall be placed at a prominent location facing the passengers or a similarly prominent area of the vehicle;

SECTION 6. PERSONS LIABLE. — The following persons/individuals are liable under this Ordinance:

A. Any person smoking any tobacco product or using Electronic Device Systems, Shisha and the like within any of the places enumerated in Section 2 hereof, except in the duly approved designated smoking areas;

B. The President or Manager in cases of a Company, Corporation or Association, or Partnership or the Owner/Proprietor or Operator in case of Single Proprietorship of accommodation or entertainment establishments, whether tourism-accredited or not, workplaces, public places, public buildings, public parks, public outdoor spaces who knowingly allows, abets or tolerates and/or fails to report violators of this Ordinance to any member of the Anti-Smoking Task Force or its duly deputized enforcers, or any law enforcer or the nearest police station immediately upon receipt of a violation or who otherwise fail to fulfill the mandatory duties and obligations as enumerated in Section 5 of this Ordinance;

C. The operator, driver, conductor or inspector of Public Conveyances, government-owned or company-owned vehicles, who knowingly allows, abets or tolerates and/or fails to warn, advise or report violations of this Ordinance to any member of the Anti-Smoking Task Force or its duly deputized enforcers, or any law enforcer or the nearest police station immediately upon receipt of a violation or

who otherwise fail to fulfill the mandatory duties and obligations as enumerated in Section 5 of this Ordinance;

SECTION 7. ANTI-SMOKING TASK FORCE. — shall be created by the City Mayor to aid in the implementation, monitoring and enforcement of this Ordinance. It shall be composed of the following:

CITY MAYOR

- Honorary Chairperson

CITY ADMINISTRATOR

- Chairperson

REPRESENTATIVE DUTY

APPOINTED BY THE CITY

MAYOR

- Co-Chairperson

CITY LEGAL OFFICER

- Vice Co-Chairperson

MEMBERS:

THE CITY HEALTH OFFICE

THE BUSINESS BUREAU

THE BUILDING OFFICIAL

THE CITY TOURISM OFFICE

THE CITY INFORMATION OFFICE

THE GENERAL SERVICES OFFICE

THE CITY ENVIRONMENT AND NATURAL RESOURCES OFFICE

THE DAVAO CITY POLICE OFFICE

THE REPRESENTATIVE OF THE PRIVATE SECTOR

For this purpose, the Anti-Smoking Task Force is tasked to inspect and monitor compliance of all places listed by this Ordinance, certify the appropriateness of the designated smoking areas, speak with violators, and recommend closure of non-compliant establishments taking into consideration the provisions of existing laws and the purpose of smoking regulations which is to protect non-smokers from the pernicious effects of exposure to tobacco smoke.

With the approval of the City Mayor, the Anti-Smoking Task Force shall also have the power to recommend amendments or revisions of any provision of this Ordinance;

Sixty (60) days after effectivity of this Ordinance, the Anti-Smoking Task Force in coordination with the Office of the Business Bureau shall conduct an ocular inspection of all non-accredited tourist establishments in Davao City to determine compliance with the requirements of this Ordinance;

For tourism-accredited accommodation and entertainment establishments, the ocular inspection shall be conducted by the Anti-Smoking Task Force in coordination with the City Tourism Office and the Office of the Business Bureau.

The Anti-Smoking Task Force in coordination with the City Health Office shall undertake educational awareness campaigns on the ill effects of smoking and exposure to secondhand smoke, information

dissemination programs, and capacity building training for smoking cessation clinics.

The Anti-Smoking Task Force in coordination with the City Information Office (CIO) shall inform the public of the provisions of this Ordinance thru an intensified tri-media campaign.

The Anti-Smoking Task Force in coordination with the Traffic Management Center (TMC) and the Davao City Police Office (DCPO) Traffic Group shall inspect the presence of "No Smoking" signs in all public utility vehicles and strictly monitor its compliance;

SECTION 8. PENALTIES. — The following penalties shall be imposed on violators of this Ordinance:

First Offense	Second Offense	Third and subsequent Offenses
Php 1,000.00 or one (1) month imprisonment or both at the discretion of the court	Php 2,500 or two (2) months imprisonment or both at the discretion of the court	Php 5,000.00 or four (4) months imprisonment or both at the discretion of the court

Places mentioned in Section 2 of this Ordinance violating for the first time will be placed under strict monitoring by Business Bureau.

Third (3^th) and subsequent violations of this Ordinance shall be a ground for cancellation of the establishment's business permit.

In case of a minor, the Local Welfare and Development Officer shall meet with the child and his/her parents or guardians for proper smoking cessation counseling and provide them with information on the appropriate diversion and rehabilitation program, in coordination with the Barangay Council for the Protection of Children and the City Health Office.

SECTION 9. CITATION TICKETS. — A citation ticket shall be issued to violators of the provisions of this Ordinance. The citation ticket shall state, among others, the name and address of the violator, the specific violation committed, and the corresponding administrative penalty.

The Philippine National Police (PNP) and such other appropriate enforcers as commissioned by the City Mayor through the Anti-Smoking Task Force shall have the power to apprehend violators of this Ordinance and issue citation tickets.

The City Mayor through the Anti-Smoking Task Force may deputize Barangay Officials or representatives of the private sector, non-government organizations, and government organizations in the strict implementation of this Ordinance, as the need arises.

SECTION 10. NO CONTEST PROVISION. — Persons liable mentioned in Section 6 (A) of this Ordinance who is apprehended or cited for violation and who does not wish to contest the violation and is willing to pay voluntarily the administrative penalty imposed upon him prior to the filing of formal charges against him, shall be allowed to pay the penalty in the form of Five Hundred Pesos (P500) with the City Treasurer's Office. To avoid being criminally prosecuted within three (3) days from apprehension. Otherwise, the case shall be prosecuted in court. The no contest provision can only be availed once. All proceeds from payment of the herein penalty imposed shall accrue to the City's General Funds.

A smoking cessation counseling in accredited clinics is required after the penalty has been paid.

SECTION 11. IMPLEMENTING RULES AND REGULATIONS. — The Anti-Smoking Task Force shall promulgate such rules and regulations, with the approval of the City Mayor, as are necessary to ensure the effective implementation of this Ordinance.

SECTION 12. FUNDING. — An amount of Five Million Pesos (P5,000,000.00) shall be appropriated out of the local treasury, not otherwise appropriated, to carry out the purposes of this Ordinance for the fiscal year 2012, ending on fiscal year 2016.

For the succeeding years, such funds as may be necessary for the continued implementation of this Ordinance shall be appropriated by the City either in the City's Annual Budget or in any of its supplemental budgets, as the case may be;

SECTION 13. REPEALING CLAUSE. — All Ordinances, rules and regulations, or part thereof, in conflict with, or inconsistent with any provisions of this Ordinance are hereby repealed accordingly;

SECTION 14. SEPARABILITY CLAUSE. — If for any reason or reasons, any part or provisions of this Ordinance is declared unconstitutional or invalid, other parts or provisions thereof not affected by such declaration shall continue to be in full force and effect;

SECTION 15. EFFECTIVITY CLAUSE. — This Ordinance shall take effect immediately after its approval and publication in a newspaper of local circulation;

ENACTED, September 25, 2012, by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:

CHARITO N. SANTOS

Acting Secretary to the Sangguniang Panlungsod (City Government Asst. Department Head II)

ATTESTED:

J/MELCHOR V. QUITAIN

President Pro-Tempro

Temporary Presiding Officer

ATTESTED:

ATTY. ZULEIKA T.LOPEZ

Acting City Administrator